

Smt. Ragini v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 28 January 2021 · WRIT - C No. - 2277 of 2021 · **Writ disposed without merits; clause 6.14 instalments; restore on first instalment.**

HEADNOTE

Without examining a delayed challenge to a 2016 recovery citation for electricity arrears of Rs.59,973, the Allahabad High Court disposed of the writ by directing the consumers to apply under clause 6.14 of the Electricity Supply Code, 2005 for payment in easy instalments. The licensee is to decide that representation by a reasoned speaking order, preferably within four weeks of filing. On deposit of the first instalment as fixed, the connection is to be restored, subject to payment of further instalments as scheduled; default disentitles the consumers to the benefit of the order.

FACTUAL SUMMARY

Smt. Ragini and two others invoked the Allahabad High Court's writ jurisdiction to quash a recovery citation dated 15 November 2016 issued by the Tehsildar, Tirwa, District Kannauj, and subsequent electricity bills, and to restrain recovery of arrears. The Power Corporation objected that a demand dated 31 October 2016 for Rs.59,973 towards dues up to 23 February 2015 had gone unexplained by delay. The petitioners did not contest that objection and offered to pay the dues in easy instalments.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility and restoration of supply

HOLDING

Consumers who do not press a writ challenging electricity-arrears recovery on merits, and who seek to pay in easy instalments, may be directed to move a representation under clause 6.14 of the Electricity Supply Code, 2005, which the licensee must decide by a reasoned speaking order. Restoration of the connection follows on deposit of the first instalment as fixed by the licensee, provided subsequent instalments are paid as prescribed; default forfeits the benefit of the order. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 The Court, without examining the delayed challenge to the 2016 recovery citation, relegated the consumers to a clause 6.14 representation for easy instalments and tied restoration of supply to deposit of the first instalment as fixed by the licensee. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION, SUBSEQUENT BILLS, AND DELAY

The Court expressly declined to enter into the merits of the challenge to the 15.11.2016 citation, the subsequent bills, or the unexplained delay in approaching the Court. ¶ 1